MASTER SUBSCRIPTION AGREEMENT

Archstone Software, Inc. and Vandelay Industries, Inc.

ARCHSTONE SOFTWARE, INC.
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Agreement No. ARC-MSA-2018-0142

This Master Subscription Agreement (this "Agreement") is entered into as of March 1, 2018 (the "Effective Date") by and between **Archstone Software, Inc.**, a Delaware corporation with its principal place of business at 1700 Lincoln Street, Suite 2400, Denver, Colorado 80203 ("Archstone"), and **Vandelay Industries, Inc.**, a New York corporation with its principal place of business at 1 Vandelay Plaza, New York, New York 10017 ("Customer"). Archstone and Customer are each a "Party" and together the "Parties."

RECITALS

A. Archstone provides a cloud-based document and email management service for legal departments and law firms, marketed as Archstone DMS, together with related support and professional services.

B. Customer wishes to subscribe to the Archstone Services for use by its Legal Department, and Archstone wishes to provide the Archstone Services, on the terms of this Agreement.

In consideration of the mutual promises below, the Parties agree as follows.

1. Definitions

Capitalized terms have the meanings given in this Section 1 or where first used in quotation marks.

1.1 **"Archstone Services"** or **"Services"** means the hosted document and email management service known as Archstone DMS, including the modules identified in an Order Form, the Archstone Network, the Documentation, and any updates, upgrades, and new releases that Archstone makes generally available to its subscribers without additional charge.

1.2 **"Archstone Network"** means the servers, storage, software, networking equipment, and datacenter facilities operated by or for Archstone to deliver the Services.

1.3 **"Contract Year"** means each successive twelve-month period beginning on the Full Billing Commencement Date or an anniversary of it.

1.4 **“Customer Data”** means all documents, email, metadata, profile data, and other content that Customer or its Service Users upload to, store in, or transmit through the Services, together with all output derived from that content within Customer’s Repository.

1.5 **“Customer Help Desk Contacts”** means the individuals designated by Customer under Exhibit B who are authorized to request Help Desk Support from Archstone.

1.6 **“Documentation”** means the user guides, administrator guides, release notes, and technical specifications for the Services that Archstone publishes to subscribers, as updated from time to time.

1.7 **“Full Billing Commencement Date”** means the date specified in the initial Order Form on which Subscription Fees begin to accrue for all Service Users.

1.8 **“Order Form”** means Exhibit A and any subsequent ordering document executed by both Parties that references this Agreement and specifies Services, quantities, fees, and term.

1.9 **“Professional Services”** means implementation, configuration, data conversion, training, integration, and other services that Archstone performs for Customer under a Statement of Work or, where no Statement of Work applies, on a time-and-materials basis at Archstone’s then-current rates.

1.10 **“Repository”** means the logically segregated instance of the Services provisioned for Customer on the Archstone Network.

1.11 **“Service Users”** means Customer’s employees, contractors, and other individuals whom Customer authorizes to access the Services under Customer’s account.

1.12 **“Statement of Work”** or **“SOW”** means a written description of Professional Services executed by both Parties that references this Agreement.

1.13 **“Subscription Fees”** means the recurring fees for the Services set out in an Order Form.

1.14 **“Term”** has the meaning given in Section 6.1.

2. Archstone Services

2.1 **Provision of Services.** Subject to this Agreement, Archstone will make the Services available to Customer and its Service Users during the Term in accordance with the Documentation and the service levels in Exhibit B.

2.2 **Service Users and Seats.** Customer may authorize up to the number of Service Users specified in the applicable Order Form. Customer may add Service Users at any time at the per-user rate in the Order Form, prorated for the remainder of the then-current billing period. Customer may reduce the number of Service Users on thirty (30) days’ written notice, effective at the start of the next billing period, provided that the number of Service Users shall not fall below eighty percent (80%) of the number specified in the then-current Order Form during any Contract Year.

2.3 **Storage.** The Order Form specifies the storage included in the Subscription Fees (“Included Storage”). Archstone will measure storage consumed by Customer’s Repository on the last day of each calendar month. Storage in excess of Included Storage will be invoiced at the overage rate in the Order Form.

2.4 **Updates and Releases.** Archstone may modify the Services from time to time, provided that no modification materially reduces the functionality, security, or availability of the Services during the Term. Archstone will provide at least thirty (30) days’ notice of any release that requires action by Customer’s administrators, and at least ninety (90) days’ notice before retiring any module or material feature.

2.5 **Professional Services.** Archstone will perform Professional Services described in any SOW. Professional Services not covered by an SOW will be performed only on Customer’s written request and invoiced at Archstone’s then-current time-and-materials rates, which Archstone will provide to Customer before commencing work.

2.6 **Subcontractors.** Archstone may use subcontractors and hosting providers to deliver the Services, provided that Archstone remains responsible for their performance and for compliance with this Agreement.

2.7 **Support.** Archstone will provide Help Desk Support as described in Exhibit B.

3. Intellectual Property and Related Rights

3.1 **Archstone Property.** Archstone and its licensors own all right, title, and interest in the Services, the Archstone Network, the Documentation, and all software, designs, and know-how used to deliver them, including all improvements and derivative works, other than Customer Data. Nothing in this Agreement transfers ownership of any Archstone Property to Customer.

3.2 **License to Customer.** Archstone grants Customer a non-exclusive, non-transferable right during the Term for Service Users to access and use the Services and Documentation for Customer’s internal business purposes in accordance with this Agreement.

3.3 **Restrictions.** Customer shall not, and shall not permit any Service User to: (a) copy, modify, or create derivative works of the Services; (b) reverse engineer or attempt to derive source code from the Services, except to the extent permitted by law; (c) resell, sublicense, or provide the Services to third parties other than Service Users; (d) use the Services to store or transmit malicious code or unlawful material; or (e) interfere with the integrity or performance of the Archstone Network.

3.4 **Feedback.** Customer grants Archstone a perpetual, royalty-free license to use suggestions and feedback about the Services, provided that Archstone shall not identify Customer as the source without consent and shall not use any Customer Data in doing so.

3.5 **Trademarks.** Neither Party may use the other’s names, logos, or trademarks without prior written consent, except that Archstone may list Customer’s name in customer lists after Customer’s written approval of the form of listing.

4. Customer Responsibilities

4.1 **Account Administration.** Customer is responsible for administering its account, including provisioning and deprovisioning Service Users, assigning permissions, and maintaining the confidentiality of credentials. Customer shall notify Archstone promptly of any unauthorized use of its account.

4.2 **Acceptable Use.** Customer shall use the Services in compliance with applicable law and the Documentation and shall be responsible for the acts and omissions of its Service Users.

4.3 **Customer Systems.** Customer is responsible for the hardware, software, and network connectivity required to access the Services, as described in the Documentation, and for any third-party systems Customer integrates with the Services.

4.4 **Customer Help Desk.** Customer shall maintain an internal help desk as the first point of contact for Service Users and shall designate Customer Help Desk Contacts under Exhibit B.

5. Customer Data, Confidentiality, and Security

5.1 **Ownership of Customer Data.** As between the Parties, Customer owns all Customer Data. Customer grants Archstone a limited license to host, copy, transmit, display, and process Customer Data solely to provide the Services to Customer, to prevent or address service or technical problems, or as required by law.

5.2 **Use of Customer Data.** Archstone shall not access Customer Data except as necessary to provide the Services, to respond to support requests, or as required by law, and shall not disclose Customer Data to third parties except to its subcontractors under obligations of confidentiality no less protective than this Section 5. Archstone may compile and use aggregated, de-identified statistical data about the operation of the Services (such as storage volumes, feature usage counts, and performance metrics) provided that such data does not include Customer Data content and does not identify Customer or any individual.

5.3 **Security.** Archstone shall maintain administrative, physical, and technical safeguards designed to protect the security, confidentiality, and integrity of Customer Data, including encryption of Customer Data in transit and at rest, logical segregation of Customer’s Repository, role-based access controls, intrusion detection, and regular vulnerability assessment. Archstone shall maintain a SOC 2 Type II report covering the Services and shall make the then-current report available to Customer on request, subject to confidentiality. Archstone shall notify Customer without undue delay after becoming aware of any unauthorized access to Customer Data.

5.4 **Confidentiality.** Each Party shall hold the other Party's Confidential Information in confidence, use it only to perform this Agreement, and disclose it only to employees, advisors, and subcontractors who need to know it and are bound by obligations no less protective than this Section. "Confidential Information" means non-public information disclosed by a Party that is marked confidential or that a reasonable person would understand to be confidential, and includes Customer Data and the terms of this Agreement. Confidential Information does not include information that is or becomes public through no fault of the receiving Party, was known to the receiving Party without restriction before disclosure, is independently developed, or is rightfully received from a third party. A Party may disclose Confidential Information to the extent required by law or court order, after giving the other Party prompt notice and reasonable cooperation to seek protective treatment. The obligations in this Section 5.4 survive for five (5) years after termination of this Agreement and, for trade secrets and for Customer Data subject to the attorney-client privilege or the work-product doctrine, for so long as such information remains protected.

5.5 **Privacy.** To the extent Customer Data includes personal information, Archstone shall process it only on Customer's documented instructions and in accordance with Archstone's Privacy Policy as posted on its website on the Effective Date, provided that if the Privacy Policy conflicts with this Agreement, this Agreement controls. The Parties shall execute such additional data processing terms as may be required by applicable privacy law.

5.6 **Legal Process.** If Archstone receives a subpoena, warrant, or other legal demand for Customer Data, Archstone shall, unless prohibited by law, notify Customer promptly and give Customer the opportunity to object before producing any Customer Data.

6. Term and Termination

6.1 **Term.** This Agreement commences on the Effective Date and continues for an initial term ending on the third (3rd) anniversary of the Full Billing Commencement Date (the "Initial Term"). Thereafter this Agreement renews automatically for successive renewal terms of the duration specified in the then-current Order Form or, if none is specified, of twelve (12) months each (each a "Renewal Term," and together with the Initial Term, the "Term"), unless either Party gives the other written notice of non-renewal at least sixty (60) days before the end of the then-current Initial Term or Renewal Term.

6.2 **Termination for Cause.** Either Party may terminate this Agreement on written notice if the other Party: (a) materially breaches this Agreement and fails to cure the breach within thirty (30) days after receiving written notice describing it; (b) becomes insolvent, makes a general assignment for the benefit of creditors, or has a receiver appointed over substantially all of its assets; or (c) files or has filed against it a petition in bankruptcy that is not dismissed within sixty (60) days. Termination under Section 6.2(a) is effective on the thirty-first (31st) day after notice unless the breach has been cured.

6.3 **Suspension.** Archstone may suspend access to the Services, on notice where practicable, if Customer’s use presents an imminent security risk to the Archstone Network or if undisputed Subscription Fees are more than sixty (60) days past due after written notice. Archstone shall restore access promptly once the cause of suspension is resolved.

6.4 **Effect of Termination; Data Return.** On expiry or termination for any reason: (a) Customer’s right to use the Services ends, except as provided in this Section; (b) Archstone shall make the Services available to Customer in read-only mode for ninety (90) days after the effective date of termination (the “Transition Period”) at no additional charge, to allow Customer to export Customer Data; (c) Archstone shall provide Customer with a complete export of Customer Data in the documents’ native file formats together with all associated metadata in a commonly used machine-readable format (such as CSV or XML), using Archstone’s export utility, and shall provide reasonable assistance with the export at no additional charge; and (d) Archstone shall delete Customer Data from the Archstone Network within thirty (30) days after receiving Customer’s written confirmation that the export is complete, and shall certify deletion in writing on request. Archstone shall not delete Customer Data before receiving Customer’s written confirmation, except as required by law.

6.5 **Survival.** Sections 1, 3, 5, 6.4, 7 (as to amounts accrued), 8.3, 9, and 10 survive termination.

7. Fees and Payment

7.1 **Invoicing and Payment.** Subscription Fees are invoiced monthly in advance, beginning on the Full Billing Commencement Date, and are payable within thirty (30) days after the invoice date. Storage overage is invoiced monthly in arrears. Professional Services are invoiced as specified in the applicable SOW or, absent an SOW, monthly in arrears. Customer shall pay undisputed amounts by electronic funds transfer to the account designated by Archstone.

7.2 **Fee Adjustments.** Subscription Fees are fixed for the first Contract Year and will increase by three percent (3%) on each subsequent anniversary of the Full Billing Commencement Date during the Initial Term. Following the Initial Term, Archstone may increase the Subscription Fees and any other fees for the Services for any Renewal Term upon not less than thirty (30) days’ written notice to Customer before the commencement of that Renewal Term.

7.3 **Disputed Amounts.** Customer may withhold payment of any amount it disputes in good faith, provided that Customer notifies Archstone in writing of the basis for the dispute before the payment due date and pays all undisputed amounts when due. The Parties shall work in good faith to resolve any dispute within thirty (30) days.

7.4 **Late Payment.** Undisputed amounts not paid within forty-five (45) days after the invoice date accrue interest at the lesser of one percent (1%) per month or the maximum rate permitted by law.

7.5 **Taxes.** Fees exclude sales, use, value-added, and similar taxes. Customer is responsible for such taxes, other than taxes on Archstone's income, unless Customer provides a valid exemption certificate.

8. Representations and Warranties

8.1 **Mutual.** Each Party represents that it is duly organized and has full authority to enter into and perform this Agreement.

8.2 **Archstone.** Archstone warrants that (a) the Services will perform materially in accordance with the Documentation; (b) Archstone will perform Professional Services in a professional and workmanlike manner; and (c) Archstone will not knowingly introduce malicious code into the Services. Customer's exclusive remedy for breach of Section 8.2(a) is for Archstone to correct the non-conformity or, if Archstone cannot do so within thirty (30) days, for Customer to terminate the affected Services and receive a refund of prepaid Subscription Fees for the unused portion of the Term.

8.3 **Disclaimer.** EXCEPT AS EXPRESSLY STATED IN THIS AGREEMENT, EACH PARTY DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. ARCHSTONE DOES NOT WARRANT THAT THE SERVICES WILL BE ERROR-FREE OR UNINTERRUPTED.

9. Limitation of Liability and Indemnification

9.1 **Limitation of Liability.** EXCEPT FOR A PARTY'S OBLIGATIONS UNDER SECTION 9.3, NEITHER PARTY SHALL BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, PUNITIVE, OR EXEMPLARY DAMAGES, OR FOR LOST PROFITS, LOSS OF BUSINESS, OR LOSS OF DATA, HOWEVER CAUSED AND UNDER ANY THEORY OF LIABILITY, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. EXCEPT FOR A PARTY'S OBLIGATIONS UNDER SECTION 9.3, EACH PARTY'S TOTAL CUMULATIVE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL NOT EXCEED THE SUBSCRIPTION FEES PAID OR PAYABLE BY CUSTOMER UNDER THIS AGREEMENT IN THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

9.2 **Force Majeure.** Neither Party is liable for failure to perform, other than payment obligations, to the extent caused by events beyond its reasonable control, including natural disaster, act of government, war, terrorism, labor dispute, widespread internet or utility failure, or denial-of-service attack, provided that the affected Party gives prompt notice and uses reasonable efforts to resume performance. If a force majeure event prevents Archstone from providing the Services for more than thirty (30) consecutive days, Customer may terminate this Agreement on written notice and receive a refund of prepaid fees for the period after termination.

9.3 **Indemnification by Archstone.** Archstone shall defend Customer against any third-party claim alleging that the Services, as provided by Archstone and used in accordance with this Agreement, infringe a United States patent, copyright, or trademark, or misappropriate a trade secret, and shall pay resulting damages, costs, and settlements approved by Archstone. Archstone has no obligation for claims arising from Customer Data, from combination of the Services with items not provided by Archstone, or from modifications not made by Archstone. If the Services are or are likely to be enjoined, Archstone may, at its option, procure the right for Customer to continue using the Services, modify them to be non-infringing, or terminate the affected Services and refund prepaid fees for the unused portion of the Term.

9.4 **Indemnification by Customer.** Customer shall defend Archstone against any third-party claim arising from Customer Data or from Customer's use of the Services in violation of this Agreement or applicable law, and shall pay resulting damages, costs, and settlements approved by Customer.

9.5 **Procedure.** The indemnified Party shall give prompt written notice of the claim, tender sole control of the defense and settlement to the indemnifying Party (provided that no settlement imposing obligations on the indemnified Party may be made without its consent), and provide reasonable cooperation at the indemnifying Party's expense.

10. General

10.1 **Notices.** Notices under this Agreement must be in writing and delivered by hand, by nationally recognized overnight courier, or by certified mail, to the addresses in the preamble (for Customer, attention: General Counsel, with a copy to Director, Legal Operations; for Archstone, attention: Legal Department), or to such other address as a Party designates by notice. Notices are effective on receipt. Notices of non-renewal, breach, or termination may not be given by email alone.

10.2 **Independent Contractors.** The Parties are independent contractors. Nothing in this Agreement creates a partnership, joint venture, or agency.

10.3 **Assignment.** Neither Party may assign this Agreement without the other Party's prior written consent, except that either Party may assign this Agreement without consent to a successor in connection with a merger, acquisition, or sale of all or substantially all of its assets or equity, provided that the successor assumes all obligations under this Agreement in writing and the assigning Party gives the other Party written notice within thirty (30) days after the assignment. Any other purported assignment is void.

10.4 **Non-Solicitation.** During the Term and for twelve (12) months thereafter, neither Party shall knowingly solicit for employment any employee of the other Party who was directly involved in performing this Agreement, except through general advertising not targeted at such employees.

10.5 **Insurance.** Archstone shall maintain commercial general liability, technology errors and omissions, and cyber liability insurance in commercially reasonable amounts, and shall provide certificates of insurance on request.

10.6 **Export.** Each Party shall comply with applicable export control and sanctions laws in connection with this Agreement.

10.7 **Publicity.** Neither Party shall issue any press release regarding this Agreement without the other Party's prior written approval.

10.8 **Waiver; Severability.** No waiver is effective unless in writing. If any provision is held unenforceable, it shall be enforced to the maximum extent permitted and the remainder of this Agreement shall remain in effect.

10.9 **Order of Precedence.** In the event of conflict, the following order of precedence applies: (a) an amendment to this Agreement executed by both Parties, with later amendments prevailing over earlier ones; (b) the body of this Agreement; (c) the Exhibits; (d) any Order Form; (e) any SOW.

10.10 **Governing Law.** This Agreement is governed by the laws of the State of New York, without regard to its conflict-of-laws rules. The Parties consent to the exclusive jurisdiction of the state and federal courts located in New York County, New York, for any dispute arising out of this Agreement, and waive any objection to venue there.

10.11 **Dispute Resolution.** Before commencing litigation, the Parties shall attempt in good faith to resolve any dispute through escalation to their respective executives with authority to settle, and, if unresolved within thirty (30) days, through non-binding mediation in New York, New York. Either Party may seek injunctive relief at any time to protect its Confidential Information or intellectual property.

10.12 **Counterparts; Electronic Signature.** This Agreement may be executed in counterparts and by electronic signature, each of which is an original.

10.13 **Entire Agreement.** This Agreement, including its Exhibits, Order Forms, and SOWs, is the entire agreement between the Parties regarding its subject matter and supersedes all prior proposals, agreements, and understandings. This Agreement may be amended only by a written instrument signed by both Parties. Terms on any Customer purchase order or Archstone click-through are of no effect.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

ARCHSTONE SOFTWARE, INC.	**VANDELAY INDUSTRIES, INC.**
By: /s/ Whitney Ashcroft	By: /s/ Simon Rasmussen
Name: Whitney Ashcroft	Name: Simon Rasmussen
Title: Chief Revenue Officer	Title: General Counsel
Date: February 27, 2018	Date: March 1, 2018

EXHIBIT A: ORDER FORM NO. 1

Services, Quantities, Fees, and Payment Schedule

Customer: Vandelay Industries, Inc., Legal Department **Archstone Account Executive:** Colin Ashby **Order Form Date:** March 1, 2018 **Full Billing Commencement Date:** June 1, 2018, or such earlier date on which Customer's Service Users begin production use of the Services.

Item	Description	Quantity	Unit Fee	Monthly Fee
Archstone DMS, Enterprise Edition	Cloud document management service including matter-centric workspaces, versioning, full-text and metadata search, security and ethical walls, audit trail, and the administrator console (Insight Analytics, basic reporting)	190 Service Users	$38.00 per user per month	$7,220.00
Archstone Mail	Outlook add-in for filing email and attachments to workspaces, with predictive filing suggestions	Included	Included	Included
Archstone Mobile	iOS and Android applications	Included	Included	Included
Included Storage	3 TB (3,072 GB)	Included	Included	Included
Total Monthly Subscription Fee				**$7,220.00**

Additional terms.

1. Additional Service Users: $38.00 per user per month, prorated. Reductions per Section 2.2 of the Agreement.
2. Storage overage above Included Storage: $1.00 per GB per month, measured on the last day of each month and invoiced in arrears.
3. Implementation Fee: $24,000 one-time, invoiced 50 percent on the Order Form Date and 50 percent on the Full Billing Commencement Date, covering tenant provisioning, single sign-on configuration, migration of up to 1.2 TB from Customer's existing file shares, and administrator training for up to six administrators. Additional migration volume and end-user training are available under an SOW.
4. Professional Services not covered by an SOW: $325 per hour, in half-hour increments, on Customer's prior written request.
5. Support: Standard Help Desk Support per Exhibit B is included. Premium Support is available at $1,000 per month.
6. Subscription Fees are fixed for the first Contract Year and adjust per Section 7.2 of the Agreement.
7. Renewal Term duration, if this Order Form is not superseded: twelve (12) months.

Accepted and agreed by the Parties' signatures to the Agreement.

EXHIBIT B: HELP DESK SUPPORT AND SERVICE LEVELS

I. Help Desk Support

Help Desk Support is the technical assistance Archstone provides to Customer Help Desk Contacts, after Customer's internal help desk has exhausted first-level troubleshooting, for questions about the operation of the Services and for reporting Service Outages. Help Desk Support does not include Professional Services, end-user training, or support for third-party systems. Archstone has no obligation to provide support directly to Service Users other than Customer Help Desk Contacts.

II. Customer Help Desk Contacts

Customer may designate up to six (6) Customer Help Desk Contacts, who must complete Archstone administrator training. Customer may change its designated contacts on written notice.

III. Requesting Support; Priority Levels

Support requests may be submitted through the Archstone support portal, by email to support@archstone.example, or, for Priority 1 issues, by telephone to the number published in the portal. Archstone will assign each request a priority as follows:

Priority	Definition	Target First Response	Target Status Updates

P1	Services unavailable to all or substantially all Service Users, or data integrity at risk	1 hour, 24x7	Every 2 hours
P2	Material feature unavailable or severely degraded for many Service Users; no reasonable workaround	4 business hours	Daily
P3	Feature impaired for some Service Users; workaround available	1 business day	Every 3 business days
P4	General questions, cosmetic issues, enhancement requests	2 business days	As needed

Business hours are 7:00 a.m. to 7:00 p.m. Mountain Time, Monday through Friday, excluding Archstone holidays. Target times are objectives and are not subject to Service Credits.

IV. Service Availability and Service Credits

1. **Commitment.** Archstone will make the Services available at least 99.9 percent of the time during each Contract Year (“Service Availability”), excluding Excused Downtime.

2. **Measurement.** Service Availability is calculated for each Contract Year as: (total minutes in the Contract Year minus minutes of Unscheduled Downtime, excluding Excused Downtime) divided by (total minutes in the Contract Year minus Excused Downtime), expressed as a percentage. “Unscheduled Downtime” means minutes during which the Services are unavailable to substantially all Service Users as measured by Archstone’s monitoring systems. The first three months following the Full Billing Commencement Date are excluded from measurement.

3. **Excused Downtime.** Excused Downtime means (a) scheduled maintenance of up to eight (8) hours per calendar month, announced at least forty-eight (48) hours in advance and performed between 10:00 p.m. and 6:00 a.m. Mountain Time where practicable; (b) emergency maintenance required to address a security threat; (c) unavailability caused by Customer’s systems, networks, or acts; (d) force majeure events; and (e) unavailability of third-party services not under Archstone’s control.

4. **Service Credits.** If Service Availability for a Contract Year is below 99.9 percent, Customer is entitled to a credit against future Subscription Fees (“Service Credit”) according to the following schedule:

Service Availability for the Contract Year	Service Credit
99.5% to 99.89%	3 days of annualized Subscription Fees
99.0% to 99.49%	7 days of annualized Subscription Fees
Below 99.0%	10 percent of annualized Subscription Fees

5. **Claims.** To receive a Service Credit, Customer must submit a written request to Archstone’s account manager within thirty (30) days after the end of the Contract Year in which the shortfall occurred, identifying the dates and duration of the Unscheduled Downtime claimed. Archstone will review the request against its monitoring records and apply any credit due to the next invoice.

6. **Limits.** Service Credits are Customer’s sole and exclusive remedy for any failure to meet the Service Availability commitment. Total Service Credits in any Contract Year shall not exceed ten percent (10%) of the annualized Subscription Fees for that Contract Year. Service Credits have no cash value and are forfeited if this Agreement terminates or expires before the credit is applied.

7. **Status Reporting.** Archstone will maintain a status page for the Services and will provide Customer with a root cause summary within ten (10) business days after any P1 incident.

V. Maintenance and Release Communications

Archstone will publish release notes for each release of the Services at least ten (10) business days before general availability and will offer a briefing to Customer Help Desk Contacts for any release that changes the user interface materially.

End of Exhibit B.